

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0003901

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: STEPHEN SHARKEY

NATURE OF PROCEEDINGS: MOTION – OTHER: TO VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

American Express National Bank filed a motion to vacate the conditional dismissal and enter judgment. A proof of service indicates that Defendant Sharkey was served with notice of the motion and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

In light of the non-opposition, the Court shall vacate the dismissal and enter judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/22/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0004036

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: UPHOLD HQ INC.

vs.

DEFENDANT: TAMMY MARIE BYRNE,
ET AL

NATURE OF PROCEEDINGS: MOTION PRO HAC VICE

RULING

The court shall grant the application for Pro Hac Vice.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

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